

Ramos, *supra*, 28 Cal.App.5th at p. 1052.) In contrast, clauses that add more expansive phrasing such as "or relating to" or "in connection with" are construed broadly and may reach extracontractual tort or statutory claims having their roots in the parties' working relationship. (*Ramos, supra*, 28 Cal.App.5th at pp. 1051–1052.)

Here, Paragraph 24 contains no broad "relating to" language; it is confined to litigation "arising out of this agreement." Under *Elijahjuan v. Superior Court* (2012) 210 Cal.App.4th 15, Plaintiff's claims do not arise under the Agreement. In *Elijahjuan*, workers who signed independent contractor agreements brought statutory misclassification and wage claims under the Labor Code. The Court of Appeal held that these claims did not arise out of the contracts because the workers were not seeking to enforce rights created by the agreements. (*Id.* at p. 21.) As the court explained, worker classification depends on the governing statutory standards and the actual work performed, rather than the contractual label chosen by the parties. (*Id.* at pp. 21–22.) *Elijahjuan* confirmed that while an agreement may serve as evidence of the relationship, statutory Labor Code claims do not "arise out of the contract, involve the interpretation of any contract terms, or otherwise require there to be a contract." (*Elijahjuan, supra*, 210 Cal.App.4th at pp. 21–24; see also *Ramos, supra*, 28 Cal.App.5th at p. 1052 [citing *Elijahjuan* as an example of a narrow clause that failed to cover statutory misclassification claims].)

Plaintiff does not allege a breach of the Agreement, nor does Plaintiff seek to enforce any promised term of compensation under it. Instead, the action seeks to enforce statutory protections under California law regarding minimum wages, overtime, meal and rest periods, wage statements, and expense reimbursements. Because those duties exist independently of the Agreement and do not turn on its interpretation or performance, they do not "arise out of" the Agreement.

Because Defendant lacks standing to enforce the Agreement and because the statutory claims do not arise out of it, the Court does not reach Plaintiff's alternative argument that he did not knowingly and voluntarily agreed to venue in Orange County.

Transfer for the Convenience of Witnesses

In its opening brief, Defendant raised the convenience of witnesses as a ground for transfer, asserting all witnesses work or reside in Orange County. In opposition, Plaintiff argued that any transfer based on witness convenience is premature before an answer has been filed, and unsupported because Defendant identified no nonparty witnesses. In its reply, Defendant clarified that it is not moving for a change of venue based on the convenience of witnesses at this time, and stating that it reserves the right to bring a convenience-of-witnesses motion after filing its answer. Because Defendant is not seeking relief under section 397(c) at this time, the Court does not address the issue.

Disposition

Based on the foregoing, Defendant's motion to transfer venue is **denied**.

23. 9:00 AM CASE NUMBER: C25-03412
CASE NAME: BRIAN SWANSON VS. CITY OF SAN RAMON
HEARING ON DEMURRER TO: SECOND AMENDED VERIFIED PETITION FOR WRIT OF MANDATE
FILED BY: TRUMARK HOMES
TENTATIVE RULING:

Before the Court is a demurrer by Respondent City of San Ramon and Real Parties in Interest Trumark Homes and KB Home South Bay, Inc. to the second amended verified petition for writ of mandate. For the reasons set forth, the demurrer is **sustained, without leave to amend**.

Background

Petitioner Brian C. Swanson, AIPC challenges the City of San Ramon Planning Commission's approvals of amendments to two development projects in his operative second amended verified petition for writ of mandate ("2AP"). (2AP ¶ 1.) First, on October 23, 2025, the City filed a Notice of Determination for the project for which Trumark Homes is the sponsor, approving the project Petitioner refers to as "BR 11." (2AP ¶ 9, 14 and Exh. D-6 [Notice of Determination dated October 23, 2025 as to adoption of Resolution Number 12-25 to approve applications by Trumark for a Development Plan Amendment (DPA 2025-0005) and Minor Exception (MX 2025-0003) for the Bishop Ranch 11 Project].) Second, on or about November 5, 2025, the City filed a Notice of Determination for the project for which KB Homes South Bay, Inc. is the sponsor, approving the project Petitioner refers to as "BR 7." (2AP, ¶¶ 10, 15, Exh. E-4 [Notice of Determination dated November 5, 2025 as to adoption of Resolution Number 14-25 to approve applications by KB Home for a Development Plan Amendment (DPA 2025-0007) and Minor Exception (MX 2025-0005) for the Bartlett Bishop Ranch 7 Project].) Petitioner alleges that he submitted written public comments regarding the two projects to the Planning Commission, objecting to the projects before the Planning Commission approved them. (2AP ¶ 7.)

In summary, Petitioner contends that the City failed to comply with the requirements of the California Environmental Quality Act, Public Resources Code section 21000 *et seq.* ("CEQA") in approving the two projects. He alleges that the City violated CEQA by approving the projects in reliance on the General Plan 2040 Environmental Impact Report ("GP 2040 EIR") without conducting subsequent or supplemental environmental review, despite changes in downtown intensity and parking standards, and without consideration of the cumulative and transportation/Vehicle Miles Travelled ("VMT") impacts of the projects, and without consideration of the effectiveness and enforceability of mitigation measures and monitoring. (2AP ¶ 16 and Exhs. D-4 and E-3.)

Swanson filed his initial petition commencing this case on November 24, 2025. In January 2026, Petitioner filed a first amended verified petition for writ of mandate ("FAP") to which the City demurred, and Trumark and KB Homes joined in the demurrer. In an Order After Hearing ("OAH") filed on April 30, 2026, the Court sustained the demurrer to the FAP on the ground that Petitioner failed to exhaust his administrative remedies and failed to allege facts sufficient to excuse his compliance with the exhaustion requirement under the exceptions alleged in the FAP. The Court granted Petitioner leave to amend to attempt to allege additional facts stating grounds for an excuse for Petitioner's lack of exhaustion. (4/30/2026 OAH.)

Petitioner filed his 2AP on May 11, 2026. He alleges (1) a first cause of action for failure to proceed as required by law based on the City's alleged Improper reliance on the General Plan 2040 Prior EIR without subsequent or supplemental review (2AP p. 27), (2) a second cause of action for failure to proceed as required by law based on the City's alleged inadequate project-level and cumulative impact analysis and inadequate VMT/Transportation analysis (2AP p. 28), (3) a third cause of action for inadequate mitigation and monitoring of significant environmental impacts and unlawful deferral of mitigation measures (2AP p. 32), (4) a fourth cause of action based on the City's findings being unsupported by substantial evidence and lacking analytical support (2AP p. 33), and (5) a fifth cause of action for failure to proceed in the manner required by law based on the absence of, or lack of disclosure of, local CEQA procedures and CEQA appeal structure and fees (2AP p. 34).

Legal Standards for Ruling on Demurrer

In general, the same rules of pleading and practice applicable to civil actions apply in writ proceedings, except as otherwise specifically provided. (Code Civ. Proc. § 1109; *Boren v. State Personnel Board* (1951) 37 Cal.2d 634, 638.) In ruling on a demurrer, the Court must accept as true all well-pled factual allegations of the 2AP, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123.) In determining whether the 2AP states a claim for relief, the Court gives the 2AP "a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) The Court also considers matters of which the Court can properly take judicial notice. (*Save Lafayette Trees v. East Bay Regional Park District* (2021) 66 Cal.App.5th 21, 29.) (*See also Evans v. City of Berkeley, supra*, 38 Cal.4th at 6 [" "[A] complaint otherwise good on its face is subject to demurrer when facts judicially noticed render it defective." [Citation.]' [Citations omitted.]"].)

"A demurrer may properly be sustained based on the failure to adequately plead exhaustion of administrative remedies. [Citation omitted.] In order to withstand a demurrer for failure to allege exhaustion of available administrative remedies, the plaintiff must allege facts showing that he did exhaust administrative remedies or facts showing that he was not required to do so. [Citations omitted.]" (*Tejon Real Estate, LLC v. City of Los Angeles* (2014) 223 Cal.App.4th 149, 156.) The exhaustion doctrine does not apply if there is no administrative remedy provided or if the remedy is inadequate. (*Tejon Real Estate, supra*, 223 Cal.App.4th at 155-156 [" 'With limited exceptions, . . . where an adequate administrative remedy is provided . . . , resort to that forum is a "jurisdictional" prerequisite to judicial consideration of the claim.' [Citation omitted.]"].)

Demurring Parties' Request for Judicial Notice

Demurring Parties ask the Court to take judicial notice of Title D - Zoning of the San Ramon Municipal Code ("SRMC") and Resolution 2025-036, "A Resolution of the City Council of the City of San Ramon Adopting the Master Fee Schedule for Various Municipal Services for Fiscal Year 2025/26, and Repealing Resolution 2024-051 ("Fee Schedule Resolution"). (Demurring Parties' RJN Exhs. 1 and 2.) An excerpt of Title D of the SRMC is attached to the 2AP as Exhibit H-4, and the Fee Schedule Resolution and portion of the fee schedule are attached to the 2AP as Exhibit H-2.

Petitioner's objections to the request for judicial notice address (1) the legal implications of the SRMC and Fee Schedule Resolution on the 2AP and Petitioner's allegations as to why he was justified or

excused from exhausting the administrative appeal process, and (2) whether the truth or interpretation of the contents of the documents are reasonably disputable. They do not address whether the Court can properly take judicial notice of the documents, subject to the limitations under the case law.

The Court **grants** the demurring parties' request, subject to the limitations on judicial notice of a document under applicable case law. (Evid. Code §§ 452(b) and 452(c); *StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9 [judicial notice of the existence of filed documents does not extend to the truth of the content of the documents where truth or interpretation of the content of the document is reasonably disputable]; *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-115 [same]; *Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 374-375 [same, and adding that "judicial notice of matters upon demurrer will be dispositive only in those instances where there is not or cannot be a factual dispute concerning that which is sought to be judicially noticed."].)

Petitioner's Objections to Demurring Parties' Declarations in Support of Demurrer

Demurring parties filed declarations of their respective attorneys in support of the demurrer. The declarations in part attest to the parties' compliance with the meet and confer process required under Code of Civil Procedure section 430.41(a), and Petitioner does not object to the Court's consideration of the declarations to that extent. Petitioner also does not object to the Court's consideration of the Lysons Declaration to the extent the declarant authenticates the copies of the SRMC and the Fee Schedule Resolution.

A. Objection No. 1

The Court interprets Blackwell Declaration paragraph 11, Klein Declaration paragraph 13, and Lysons Declaration paragraph 13 as advising the Court of the position each declarant took in the meet and confer videoconference as to the demurring parties' position on deficiencies in the 2AP. The Court does not accept or consider that these paragraphs are offered as evidence of the merit of the positions taken by the three counsel during the meet and confer. Based on the Court's interpretation of the statements in those paragraphs, Petitioner's objection is **overruled**.

B. Objection No. 2

The Court **sustains** Petitioner's objection to Lysons Declaration paragraph 14. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) In ruling on a demurrer, the Court considers the documents of which the demurring parties have requested judicial notice, not counsel's summary of the content or import of the content of the documents described in a declaration, whether or not accurate. (*Id.*)

Objection to Petitioner's Late Opposition

Petitioner's opposition was due on September 2, 2026, as Petitioner concedes. He also concedes that the opposition papers were filed after midnight early in the morning on September 3, 2026 and were served electronically on September 3, 2026, not September 2, 2026. The demurring parties object to the Court's consideration of the late opposition. Petitioner has filed a written request for the Court to consider the late opposition and explains his technical problem filing the opposition that caused it to be late. The demurring parties have filed substantive reply papers addressing the merits of the opposition papers, and the Court does not discern that the demurring parties suffered any

meaningful prejudice by the late opposition. Under the circumstances, the Court exercises its discretion to consider the late opposition papers. (Cal. R. Ct., Rule 3.1300(d).)

Petitioner's Declaration in Support of the Opposition

The Court does not consider evidence in ruling on a demurrer except matters subject to judicial notice. (*Donabedian, supra*, 116 Cal.App.4th at 994.) The Court considers some portions of the declaration only as an offer of proof of additional allegations Petitioner may be able to make if leave to amend were granted.

Analysis

The City and real parties Trumark and KB Homes jointly demur to the 2AP in its entirety. Demurring Parties contend the Court has no jurisdiction over the subject of the claims alleged in the 2AP because Petitioner failed to exhaust his administrative remedies before seeking judicial review, and Petitioner has not alleged facts sufficient to excuse his failure to exhaust his administrative remedies. (Code Civ. Proc. § 430.10(a).) For the same reasons, they contend the 2AP fails to allege facts sufficient to state causes of action. (Code Civ. Proc. § 430.10(e).)

Petitioner alleges, and therefore concedes, that he filed the petition initiating this case without first appealing the Planning Commission approvals of BR 11 and BR 7 to the City Council. (2AP ¶ 18, p. 12, l. 220.) He does not allege that he attempted to file appeals of the Planning Commission approvals even without paying a filing fee. (2AP ¶ 18, p. 12, l. 220.) Petitioner opposes the demurrer

A. Exhaustion of Administrative Remedies Doctrine

As the Court stated in the OAH, the California Supreme Court explained the exhaustion of administrative remedies doctrine and the policies underlying the doctrine in *Coachella Valley Mosquito & Vector Control Dist. v. California Public Employment Relations Bd.* (2005) 35 Cal.4th 1072 as follows: "In general, a party must exhaust administrative remedies before resorting to the courts. [Citations omitted.] Under this rule, an administrative remedy is exhausted only upon 'termination of all available, nonduplicative administrative review procedures.' [Citations omitted.] [¶] 'The exhaustion doctrine is principally grounded on concerns favoring administrative autonomy (i.e., courts should not interfere with an agency determination until the agency has reached a final decision) and judicial efficiency (*i.e., overworked courts should decline to intervene in an administrative dispute unless absolutely necessary*).' [Citations omitted.] The exhaustion requirement applies to defenses as well as to claims for affirmative relief [citations omitted], and we have described exhaustion of administrative remedies as 'a jurisdictional prerequisite to resort to the courts' [citations omitted]." (*Id.* at 1080 [emphasis added].)

Another court described some of the policies supporting the doctrine and its jurisdictional nature: "The requirement of exhaustion of administrative remedy is founded on the theory that the administrative tribunal is created by law to adjudicate the issue sought to be presented to the court, and the issue is within its special jurisdiction. If a court allows a suit to go forward prior to a final administrative determination, it will be interfering with the subject matter of another tribunal." [Citation omitted.] Consequently, the requirement of exhaustion is a jurisdictional prerequisite, not a matter of judicial discretion. [Citation omitted.]" (*Tahoe Vista Concerned Citizens v. County of Placer* (2000) 81 Cal. App. 4th 577, 589.) (*See also Stop Syar Expansion v. County of Napa* (2021) 63

Cal.App.5th 444, 453 [exhaustion is jurisdictional prerequisite, and whether exhaustion has been satisfied is a question of law for the Court].)

"Section 21177 addresses the exhaustion of administrative remedies in CEQA cases, but it does not prescribe a specific appeal process following a determination a project is exempt from CEQA. Instead CEQA requires that if a nonelected official or decisionmaking body determines a project is exempt from CEQA, the agency must allow for an appeal of that determination to the agency's elected decisionmaking body. (§ 21151, subd. (c).) The Guidelines also provide the 'local lead agency may establish procedures governing such appeals.' (Guidelines, § 15061, subd. (e).)" (*McCann v. City of San Diego* (2021) 70 Cal.App.5th 51, 76.) (*See also Schmid v. City and County of San Francisco* (2021) 60 Cal.App.5th 470, 492-493 [CEQA does not preempt local administrative process; it contemplates local agencies establishing their own procedures, rejecting petitioner's claim he was excused from exhausting local appeal procedure based on argument regarding city's "regulatory morass" and that CEQA preempted the local procedures].)

"Several cases recognize that when an agency elects to adopt an administrative appeal process, the common law rule requiring the exhaustion of administrative remedies applies to CEQA litigation and the scope of the remedy is 'determined by the procedures applicable to the public agency in question.' [Citation omitted.] Thus, 'whether the exhaustion doctrine applies depends on the relevant procedures available in a specific jurisdiction.' [Citation omitted.] Where an appeal process is available and a party fails to exhaust its administrative remedies, it may not bring a judicial action challenging the environmental determination. [Citation omitted.]" (*McCann, supra*, 60 Cal.App.5th at 77 [emphasis added].)

B. Summary of Relevant Appeal Provisions of Zoning Ordinance and Notices to Public of Appeal Rights

Petitioner alleges that the decisions by the Planning Commission that he challenges were characterized by the City as "minor" amendments to previously approved projects subject to the 2040 GP EIR previously certified by the Planning Commission. (2AC ¶¶ 2, 27, 28, 30.) The City concluded the minor amendments did not require subsequent or supplemental environmental review. (2AP ¶¶ 2, 27, 28, 30.)

In its OAH sustaining the demurrer to the FAP, the Court analyzed at length the provisions of Title D of the SRMC, the Zoning Ordinance applicable to all manner of land use issues. The Court examined the scope of Title D and identified specifically the provisions that set forth the availability of appeals from decisions of the Planning Commission and the process for appealing. The Court rejected Petitioner's arguments that the Zoning Ordinance was ambiguous with respect to the broad scope of its coverage or Division 7 covering "Zoning Ordinance Administration," with Division headings which make it clear the Zoning Ordinance covers all manner of issues involving land uses and zoning. The concept of "land uses" by its terms is broad; nothing suggests it would not cover land uses where CEQA may apply.

As the Court previously explained, Division 7's title is not limited to "zoning administration" but rather by its terms applies to the administration of the "Zoning Ordinance." The heading of Chapter II in Division D7 "Zoning Ordinance Administration" "Appeals and Calls for Review" is clear. (*See also, for example*, D1-5(A) under Rules of Interpretation ["Any official interpretation by the Director or Planning Commission shall be available for public review upon request and may be appealed pursuant

to Division D7, Chapter 2"], D2-3(a)(3)(d), D4-32(f), D5-12(A) and (C), D6-18(a)(2) and (6)(c), among approximately 15 sections referring to appeals pursuant to D7, Chapter II].) Division D7 also has a chapter regarding public hearings (Chapter IV) which includes a number of references to CEQA specifically, all under the umbrella of Division D7 Zoning Ordinance Administration, with the hearings clearly related to the substantive matters governed by the prior provisions of the Zoning Ordinance.

Section D7-8(A)(2) provides that "Decisions made by the [Planning] Commission may be appealed to the [City] Council." Any interested party may file an appeal. (SRMC § D7-9.) The appeal "shall be initiated within 10 calendar days of the date of the decision." (SRMC § D7-10.) SRMC Section D7-11(A) describes the method of taking an appeal, which requires the appeal to be filed with the City Clerk accompanied by the applicable filing fee. SRMC Section D7-11 explains that the filing of a timely appeal stays the decision appealed from "until a final decision on the matter has been rendered by the appropriate review authority." (SRMC § D7-11(C).)

Petitioner does not dispute that the first page of each of the Planning Commission agendas for the October 21, 2025 and November 4, 2025 hearings, copies of which are exhibits to the 2AP, includes a notice regarding the right to appeal decisions by the Planning Commission. (2AP Exhs. D-2 and E-1.) The October 21, 2025 agenda explains the public's right to appeal as follows: "If you challenge in Court any zoning or planning actions taken by the Planning Commission, you may be limited to raising only those issues you or someone else raised at the public hearing conducted herein or in written correspondence delivered to the Planning Commission at or prior to the public hearing. Decisions of the Planning Commission may be appealed within 10 (ten) calendar days of decision by filing a letter stating the grounds for the appeal along with the appropriate filing fee in the City Clerk's office." (2AP Exh. D-2, p. 1 [emphasis added].) The November 4, 2025 agenda has identical language regarding the right to appeal. (2AP Exh. E-1, p. 1.) The fee for filing an appeal of a Planning Commission decision is \$4,500. (2AP ¶¶ 17.b.-17.d., 18, among others and Exhs. H-1 and H-2.) Petitioner attaches to the 2AP a copy of the City Clerk webpage with Zoning Appeals instructions. (2AP Exh. H-1.)

C. The Court's Prior Ruling, the Current Demurrer and Opposition, and Petitioner's Allegations Regarding An Exception or Excuse for Noncompliance with the Exhaustion Requirement by Appealing the Planning Commission Decision to the City Council Alleged in the 2AP

In his original petition filed in November 2025 initiating the action, Petitioner did not make any allegation regarding his satisfaction of the administrative exhaustion requirement, only that he satisfied the "CEQA exhaustion" requirement by raising the grounds for violation of CEQA in comments before the Planning Commission before raising them in the original petition. In his FAP, he alleged (a) there was no CEQA-specific appeal process set forth in the Zoning Ordinance so it was not clear what the appeal process was for CEQA-related decisions by the Planning Commission; (b) appeal would have been futile because if a person challenging the decision were unable to enlist the support of a council member to make a "call for review," the appeal was unlikely to be successful; and (c) the appeal fees of \$4,500 per appeal are excessive. The Court rejected these grounds as excusing Petitioner's lack of exhaustion but granted Petitioner leave to amend to attempt to allege more. (4/30/2026 OAH.) Petitioner alleges the same three grounds as excusing his lack of exhaustion in the 2AP, but with expanded factual allegations regarding the appeal fees. (2AP ¶¶ 5, 17-19, 21, 22 at p.

18, ll. 372-379, 36, 66-68.)

1. Adequate Administrative Appeal Available

The demurring parties reiterate their position asserted in their first demurrer that the Zoning Ordinance, as well as the Planning Commission agendas from October 21, 2025 and November 4, 2025, provide administrative appeal procedures for any decision by the Planning Commission, an administrative remedy for review of any Planning Commission decision by the City Council that Petitioner was required to exhaust. Though he continues to allege the lack of a clear appeal procedure applicable to CEQA-related matters, Petitioner does not argue in his opposition that the general administrative appeal available for any Planning Commission decision did not apply to the B 11 and B 7 project decisions contested here.

For all the reasons stated in the Court's April 30, 2026 OAH, the Court rejects the claim as alleging an exception or excuse for not making an administrative appeal of the Planning Commission decisions. An administrative appeal was available and had to be pursued to meet the exhaustion requirement. (*Park Area Neighbors v. Town of Fairfax* (1994) 29 Cal.App.4th 1442, 1145, 1448, 1450 [holding that the "complete failure of PAN's [petitioner's] members to assert any challenge before the planning commission or town council to the project's compliance with density ordinances, the applicability of the adjustment exclusion and the lack of a resolution on traffic study methodology, or to appeal the planning commission's actions in the manner prescribed by the town code, precludes the assertion of those challenges in this judicial proceeding." (Emphasis added.)]; *Environmental Law Fund, Inc. v. Town of Corte Madera* (1975) 49 Cal.App.3d 105, 111 ["Section 18.58.030 of the Corte Madera Municipal Code provides, generally, for an appeal to the town council from any action taken by the planning commission. Section 18.46.070 specifically provides for an appeal to the council from action taken by the planning commission upon an application for a conditional use permit. Section 18.46.070, with which section 18.58.030 is substantially identical in pertinent terms, states: 'Within ten days following the date of a decision of the planning commission . . . , the decision may be appealed to the town council by the applicant *or by any other interested party.*' " (Italics in original, underscoring added.)].)

Petitioner had an administrative remedy and failed to exhaust it regarding both of the decisions subject to this action. (*McCann, supra*, 60 Cal.App.5th at 77 ["Where an appeal process is available and a party fails to exhaust its administrative remedies, it may not bring a judicial action challenging the environmental determination. [Citation omitted.]"].) That Petitioner may not have been aware of or may not have understood his obligation to pursue the right to appeal the B 11 and B 7 decisions of the Planning Commission to the City Council because CEQA is at issue does not mean that he is excused from compliance with the exhaustion requirement. (*Ventura29 LLC v. City of San Buenaventura* (2023) 87 Cal.App.5th 1028, 1041-1042 [holding demurrer to complaint in condemnation action properly sustained for lack of exhaustion of administrative remedies, rejecting petitioner's arguments that his lack of knowledge of the right to appeal and city's failure to inform him of right to appeal excused it from exhaustion requirement].)

2. 2AP Allegations Inadequate to Meet the Futility Exception

Petitioner continues to allege in the 2AP that it was futile for Petitioner to appeal because a comment by the mayor alleged in the 2AP shows that the City Council would not have reversed the Planning

Commission determinations. (2AP ¶¶ 2, 67.) Petitioner also does not argue in his opposition that appeal was futile on this ground. For the reasons stated in the Court's April 30, 2026 OAH, the Court rejects that the 2AP alleges facts sufficient to support futility of an appeal to the City Council under the applicable case law addressed in the prior order. As the Court explained, " 'The futility exception requires that the party invoking the exception "can positively state that the [agency] has declared what its ruling will be on a particular case." ' [Citations omitted.]" (*Coachella Valley Mosquito & Vector Control Dist.*, *supra*, 35 Cal.4th at 1080-1081.) The futility exception is a narrow one. (*Steinhart v. County of Los Angeles* (2010) 47 Cal. 4th 1298, 1313.) It "applies only if the party invoking it can positively state that the administrative agency has declared what its ruling will be in a particular case. [Citation omitted.]" (*Id.* at 1313-1314.) It requires proof that when the appeal would have been submitted to the City Council in this case, the City Council had "predetermined its position." (*Id.* at 1314 [rejecting argument that the position the County took in a subsequent court action alone was a basis for invoking the futility exception].) The 2AP does not allege facts sufficient to meet the futility exception to exhaustion.

3. Exhaustion Futile or Excused Based on Excessive Appeal Fees

The only ground for excuse from the exhaustion requirement that Petitioner addresses in detail in the opposition is the excessive appeal fees. The Court interprets Petitioner's allegations and argument as attempting to allege facts demonstrating the administrative appeal remedy was inadequate because the appeal fees were so high that it made the remedy unavailable as a practical matter.

a. Legal Background

One of the exceptions to the exhaustion of administrative remedies doctrine is that the doctrine does not apply when the administrative remedy is inadequate. (*Ventura29 LLC*, *supra*, 87 Cal. App. 5th at 1038; *Tejon Real Estate*, *supra*, 223 Cal.App.4th at 155-156.) A public entity, such as the City, the City is allowed to charge fees for an appeal involving a CEQA determination. (*Friends of Glendora v. City of Glendora* (2010) 182 Cal.App.4th 573, 580.) In *Friends of Glendora*, the Court of Appeal rejected the argument that CEQA requires fees for filing an administrative appeal of a CEQA determination to be waived. (*Id.* at 580 ["In deference to the mandate of section 21083.1, we decline to interpret CEQA as requiring that agencies such as the City waive any and all of their customary fees for filing administrative appeals of decisions, simply because the appeal is based on CEQA."].) Notably, in that case, the appellant paid the fee under protest but did not raise a challenge to the amount of the fee. (*Id.* at 580, 584.)

The parties have also addressed in connection with the demurrer to the FAP, and they address again in this demurrer, the California Supreme Court's decision in *Sea & Sage Audubon Society, Inc. v. Planning Commission of the City of Anaheim* (1983) 34 Cal.3d 412. The petitioner in that case argued excuse from the exhaustion requirement because the administrative appeal fee of \$607 was arbitrary and excessive. (*Id.* at 419–422.) The Court held that the plaintiffs could not challenge whether the administrative appeal fee was objectively unreasonable on appeal from the summary judgment against them because they had not raised the issue in the trial court in the summary judgment proceedings. The Court also stated that the reasonableness determination required the other parties to have an opportunity to present an evidentiary record on the issue, which they were denied by the plaintiffs failure to meet their burden to raise the issue in the trial court. (*Id.* at 421-422.)

b. Allegations of the 2AP

He alleges that, "The City's unusually high deposit requirement, combined with the absence of a disclosed hardship waiver/reduction mechanism, fee-less appeal procedure, pay-under-protest procedure, and narrow or unclear refundability standards, created a significant economic and procedural barrier to Petitioner's obtaining administrative review." (2AP ¶ 67.) In the 2AP, he alleges not only generally that the appeal fee amount is excessive and burdensome and a barrier to filing appeals, particularly when there are multiple separate determinations each requiring a separate appeal and an appeal fee, but also that the City failed to publish a fee waiver or similar procedure, and that he personally did not have the financial ability to pay the two appeal fees at the time the appeals had to be taken, within ten days of each of the Planning Commission determinations made approximately two weeks apart. (2AP ¶¶ 2, 17.c. ["Petitioner is on a fixed income, has qualified for fee waivers in this Court, and has required disability accommodations (including Communications Access Realtime Translation ('CART')) during these proceedings, paying a \$9,000 deposit within the ten-day window was not economically feasible for Petitioner. Petitioner would have pursued City Council appeals of BR 11 and BR 7 but for this financial barrier and the open-ended time and materials exposure described below."], 17.d., 18 ["Petitioner did not file Planning Commission appeals of BR 11 and BR 7 because the City's published appeal materials required an appeal letter to be filed with the appropriate fee, did not disclose that the City Clerk would accept, process, stay, or schedule a hearing on a fee-less CEQA appeal, and did not disclose any procedure for obtaining a hardship waiver or reduction within the ten-day deadline."], 19 ["This lack of disclosed waiver, reduction, fee-less appeal, pay-under-protest, and partial-refund process, combined with the minimum \$4,500 per-appeal upfront deposit and additional time-and-materials exposure, operates as a practical barrier that discourages or prevents public access to administrative review."], 21 [appeal-deposit fee structure as applied to Petitioner "made the asserted administrative remedy economically infeasible, inadequate, and not practically available."], 21, 36 [comparison of fees to those of other cities], 66, 67.)

Petitioner alleges he made comments on the City's fee schedule subsequent to the approval of BR 11 and BR 7, but he acknowledges the post-approval comments do not provide a basis for excusing exhaustion for the BR 11 and BR 7 approvals preceding them. (2AP ¶¶ 17.e-17.f., 18 [citing March 2026 staff report].) He alleges for the first time in the 2AP that the reason he did not appeal was because he could not afford to pay the appeal filing deposit and because the fee structure as applied to him was a barrier to his filing appeals. (2AP ¶¶ 17.d., 18.)

c. Petitioner's Allegations Regarding the Appeal Fees Do Not Excuse Petitioner's Failure to Appeal, or to Even Attempt to Appeal; The Facts Alleged Are Insufficient to Demonstrate the Appeal Process Was Inadequate or Futile

Petitioner does not allege that he filed an appeal of either of the Planning Commission decisions on the B 11 and B 7 projects to the City Council before filing this action. He does not allege that he made any attempt to file an appeal of either of the decisions. He does not allege that he requested a waiver or reduction of the appeal fees which the City denied, or that he requested a deferral of payment of all or a portion of the appeal fees or a payment plan for satisfying the appeal fees, or any other form of financial accommodation from the City in order to allow him to timely appeal either of the

decisions. There is no allegation that he tried to make a timely appeal of either decision, but that his appeals were rejected for lack of full payment of the appeal deposit fee.

The City also points out that Petitioner does not allege that he availed himself of the "free" remedy for review available under the Zoning Ordinance, a remedy Petitioner acknowledges the City provides which is a "call for review" of a Planning Commission decision. An affected party can request that a member of the City Council "call for review" of a Planning Commission decision, as recognized by Petitioner. (See 2AP ¶ 66.) If a City Council member makes a call for review, the Planning Commission decision is submitted to the full City Council for a review of the Planning Commission decision, and the City Council would have the ability to adopt, modify, or reverse the decision. (Dem. Parties RJN Exh. 1 [SRMC §§ D7-8.B., D7-10, D7-11.B., and D7-12].) Enlisting a council member to make a call for review is not the same as providing the remedy of an appeal. Nevertheless, the demurring parties are correct that Petitioner does not allege that he attempted to enlist any City Council member to make a call for review which may have allowed the B 11 and B 7 decisions to be reviewed by the City Council without Petitioner incurring fees.

Petitioner alleges that the City has no published provisions for fee waivers, reduced fees, deferral of payments, or other accommodations for an interested party who wants to appeal a Planning Commission decision but is not financially able to pay the appeal fee. Petitioner does not cite any authority that allows a party to not even attempt to pursue an administrative appeal remedy by attempting to file the appeal and asking for a reprieve from paying the associated fees or for other financial accommodations from the public agency when the party contends the fees are a financial barrier preventing him from accessing the administrative remedy provided. While Petitioner cites to his comments in April 2025 generally contesting the City's adoption of the 2025/2026 Master Fee Schedule, he does not allege any facts showing that he specifically contested the application of the appeal deposit fees to him by attempting to file appeals of the B 11 and B 7 decisions and protesting having to pay the fees.

Even assuming that the Court can accept Petitioner's new allegations that he would have appealed but did not do so because of the appeal deposit fees, Petitioner cites no authority that supports his position that he was excused from making any attempt to appeal the Planning Commission decisions because he was not able financially to pay the fee deposits in order to satisfy the administration exhaustion requirement. He does not allege that he pursued an alternative to appeal that would have avoided the "barrier" of the appeal fees by trying to enlist the free "call for review" provided under the Zoning Ordinance.

As the Court indicated in its prior OAH, the Court is persuaded by the demurring parties' argument that accepting Petitioner's position that he could dispense with even alleging an attempt to appeal these appealable decisions based on a claim the deposit was too high would undermine the exhaustion of administrative remedies doctrine. A party who simply missed the appeal deadline or chose to ignore it could initiate a judicial proceeding in Court and claim the deposit was too much or that it posed a barrier to his exhaustion of the available administrative remedies because he did not have the financial means to pay the fee and therefore was excused from appealing and exhausting the available administrative remedies. The Court finds these arguments compelling.

The Court is persuaded that even with the additional allegations, the 2AP fails to allege facts sufficient

to excuse Petitioner's failure to exhaust his administrative remedies under the circumstances. (See, e.g., *People v. Sonleitner* (1960) 185 Cal. App. 2d 350, 370-371 [holding the rule of exhaustion of administrative remedies applied where a defendant attempted to defend an action for collection of taxes on the ground his activities did not bring him within the purview of the tax law under which the assessment was made, and stating "Throughout defendant's briefs runs the recurring contention that because the court found that he was financially unable on a given date to deposit the security fixed by the board as a condition to a hearing for redetermination, he should be excused from exhausting his administrative remedies and be permitted to contest the tax in the action brought by the state on the jeopardy determination. . . . This is of course a contention which could be made against any tax and can have no relevancy here. A similar contention was advanced in *Modern Barber Colleges v. California Emp. Stab. Com.*, supra, 31 Cal.2d 720, and thus answered at page 732: 'It would be strange indeed if this court were to sanction a practice whereby a taxpayer could regularly refrain from paying taxes, the obligation of which he disputes, and then urge that, by reason of his large delinquency, the ordinary remedies provided for reviewing his liability are inadequate in his particular case.' "].)

d. Sham Pleading Doctrine Applied to the 2AP

The demurring parties argue the sham pleading doctrine applies to Petitioner's new allegations made for the first time in the 2AC that the reason Petitioner did not appeal the B11 and B7 decisions to the City Council was because the appeal deposit fees were excessive, and Petitioner did not have the financial means to pay the deposits and the potential total fees associated with pursuing the appeals. "Under the sham pleading doctrine, plaintiffs are precluded from amending complaints to omit harmful allegations, without explanation, from previous complaints to avoid attacks raised in demurrers or motions for summary judgment. [Citation omitted.]" (*Deveny v. Entropin, Inc.* (2006) 139 Cal.App.4th 408, 425-427.)

The Court in *Hendy v. Losse* (1991) 54 Cal.3d 723 explained the sham pleading doctrine, and the related "truthful pleading" doctrine. The Court explained that the doctrines apply to both verified and unverified complaints and affirmed an order sustaining a demurrer without leave to amend where the plaintiff alleged initially on information and belief that the defendant was an employee and sought to amend to allege that the defendant was an independent contractor, without demonstrating that the original allegation was "the result of inadvertence or mistake, or that he has since discovered a factual basis for alleging" defendant was an independent contractor. (*Id.* at 742-743.) If an amended complaint tries to avoid deficiencies of a prior complaint by pleading matters inconsistent with a prior pleading, the pleader must explain the inconsistencies. (*Larson v. UHS of Rancho Palm Springs* (2014) 230 Cal.App.4th 336, 343-344.) A court is "not bound to accept as true allegations contrary to factual allegations in former pleading in the same case." [Citation.]" [Citations omitted.]" (*Id.*)

Petitioner contends that his allegations that he did not appeal because of the excessively high appeal deposit fees alleged for the first time in the 2AP do not contradict his prior pleadings but rather expand upon the allegations he made in the FAP that the filing fees were excessive and a barrier to appeal. (See 2AP ¶¶ 17.c. [paying a \$9,000 deposit was not economically feasible for Petitioner"], 18, 21, 35, and 66, and compare to FAP ¶¶ 5 ["[T]he appeal structure and fee level were so unclear and cost-prohibitive, and so unlikely to change the City's CEQA posture, that any additional appeal would have been futile or inadequate."], 17.a ["The City has not adopted, or at a minimum has not clearly disclosed, any CEQA-specific appeal process or fee structure"], 17.b, 17.c [City has not adopted CEQA-

specific fee and appeal structures], 18 ["Petitioner alleges that any requirement to pursue additional City-level appeals and pay additional appeal deposits of approximately \$4,500 per project was not a reasonable or clearly disclosed prerequisite to CEQA judicial review for BR 11 and BR 7, particularly where: (a) Petitioner had already raised CEQA issues during the noticed public hearings; (b) the City lacked clear CEQA-specific appeal procedures; and (c) the City's own statements suggested that appeals would be unlikely to succeed. Under these circumstances, any further administrative appeal would have been futile or inadequate to provide a meaningful remedy, and CEQA issue exhaustion was already satisfied through Petitioner's written comments." (Emphasis added.)], 19 [Petitioner alleges that a separate CEQA appeal requirement "was not adequately noticed or specified in any CEQA implementing procedures" and "the City's appeal-fee structure renders such appeals economically prohibitive, particularly when multiplied across separate project approvals"], 63 ["These unusually high deposits and associated charges, combined with the absence of a clearly identified CEQA appeal path or implementing procedures, create a significant economic and procedural barrier for residents seeking to obtain CEQA review of BR 11 and BR 7 and tend to favor large, well-capitalized downtown landholders and their successor developers over individual community members."], and 64 ["In public comments on April 22 and November 25, 2025, Petitioner raised concerns about the City's appeal fee structure and the lack of an accessible appeal path. (Exhibits E-1 through E-4.)"].)

The Court agrees, as an additional or alternative basis for the ruling, that the sham pleading doctrine applies because a reasonable interpretation of the allegations of the FAP, individually and collectively, is that Petitioner alleged the administrative appeal provisions and fees did not clearly apply to an appeal of a Planning Commission decision involving an alleged CEQA violation, and that the appeal fees were excessive, posing a barrier generally to residents' pursuing appeals, not that they posed a barrier specifically to Petitioner pursuing an appeal because of his financial condition. The original petition did not include any allegations regarding administrative exhaustion. The FAP added allegations regarding administrative exhaustion that, when read collectively, indicate that Petitioner was not fairly apprised of a CEQA-specific appeal path under the local ordinance or of any CEQA-specific appeal fees, and that the general appeal fees were unreasonably high.

Petitioner did not allege in the FAP that Plaintiff failed to appeal the decisions because he did not have the financial ability to pay the fees, as he now alleges in the 2AP. The implication of the allegations in the FAP was that Petitioner did not understand that the appeal provisions of the Zoning Ordinance, including the appeal fees, applied to appeals of any Planning Commission decisions, including appeals asserting a CEQA violation, and that for CEQA appeals, the appeal structure was unreasonably high as a general proposition. Petitioner nowhere alleged in the FAP that the appeal deposit fees were a financial barrier to him appealing the decisions.

Further, Petitioner's arguments in the opposition and his opposing declaration, to the extent the Court can consider it, do not explain why Petitioner did not allege in his prior FAP that the reason he did not appeal the decisions was because he personally could not afford to pay the appeal fees, rather than because the appeal process and the applicable appeal fees were unclear and not clearly disclosed in the Zoning Ordinance or were excessive for individuals in general. While the Court does not find that Petitioner on this record has acted in bad faith, the Court agrees with the demurring parties that the sham pleading doctrine applies. Petitioner has not adequately explained that the

inconsistencies between the 2AP and the FAP were the result of inadvertence or mistake, rather than an attempt to avoid defects in the FAP and the dismissal of the action for failure by Petitioner to exhaust his administrative remedies.

Conclusion and Ruling

For the reasons set forth, the demurrer to the 2AP is **sustained**. Having afforded Petitioner an opportunity to allege a factual and legal basis for excusing his failure to exhaust his administrative remedies to obtain review of the Planning Commission decision by the City Council, and having failed to do so, the Court will **sustain the demurrer without leave to amend**.

24. 9:00 AM CASE NUMBER: C25-03667

CASE NAME: MICHELE BARBARA VS. ALISE MALIKYAR

*HEARING ON MOTION IN RE: CORRECT TYPOGRAPHIC ERROR ON NOTICE OF ENTRY OF JUDGMENT

FILED BY: BARBARA, MICHELE

TENTATIVE RULING:

Summary

This Motion is **denied**. The Court has already adjudicated the ownership of the property owned by Alise Malikyar located at 2324 Tice Valley Blvd., Walnut Creek, CA in the matter, *Alise Malikyar v. Robert Jacobson*, Contra Costa Superior Court MSD20-03656. See also, *Alise Malikyar v. Robert Jacobsen*, Court of Appeal Case No. A166937, where the Court of Appeal affirmed:

After describing various trust documents and Jacobsen's testimony about their import, the court wrote: "While fraud was not expressly alleged in this property dispute, the Court is convinced that Respondent [Jacobsen] engaged in the prior actions to intentionally deprive Petitioner [Malikyar] of her Separate property interest in the Subject Property, to attempt to reconvey the Property to himself and to place the title in the names of different entities to avoid any legal liability. [T] The weight of the evidence allows this Court to find that Respondent [Jacobsen] failed to meet the burden of proof that the Subject Property was conveyed to the Equitec Corporation. The Court finds, instead, Petitioner [Malikyar] is the sole owner of the Subject Property. . . .[p. 4]

It is abundantly clear that Alise Malikyar is the sole owner of 2324 Tice Valley Blvd., Walnut Creek, CA, despite any allegations or proposed judgments entered by Michele Barbara in Nevada. The court believes that these ongoing attempts to circumvent this court's orders amounts to fraud on the Court.

The judgment and notice of entry of judgment filed on December 11, 2025 is **set aside**. Plaintiff's attorney is ordered review the documents in Docket MSD20-03656 and is ordered to show cause to the Court as to why this case should not be dismissed. The Court also requests that the Clerk of the Court relate this case to MSD20-03656, as Michele Barbara is a third party claimant in that case.